

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Erin Sweeney	Team: Squad #11	CCRB Case #: 201600737	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 01/20/2016 2:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/20/2017	Precinct: 113		
Date/Time CV Reported Wed, 01/20/2016 10:15 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/28/2016 11:04 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Philip Masi	13595	949277	113 PCT
2. POM Robert Romano	15016	952186	113 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Widy Geritano	1654	932585	113 PCT
2. POF Lynn Dilieto	22211	952687	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Philip Masi	Abuse: At § 87(2)(b) in Queens, PO Philip Masi stopped § 87(2)(b)	A . Exonerated
B . POM Robert Romano	Abuse: At § 87(2)(b), PO Robert Romano threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . POM Philip Masi	Force: Inside of § 87(2)(b) in Queens, PO Philip Masi used physical force against § 87(2)(b)	C . Exonerated
D . An officer	Force: Inside of § 87(2)(b) in Queens, an officer used a chokehold against § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Force: Inside of § 87(2)(b) in Queens, an officer restricted § 87(2)(b)'s breathing.	E . Officer(s) Unidentified
F . An officer	Force: Inside of § 87(2)(b) in Queens, an officer struck § 87(2)(b) with a door.	F . Officer(s) Unidentified

Case Summary

On January 20, 2016, at approximately 2:30 p.m., § 87(2)(b) walked from his apartment, located at § 87(2)(b) in Queens, to his friend's apartment building, located at § 87(2)(b) in Queens. § 87(2)(b)'s apartment building and his friend's apartment building are only separated by a courtyard (Board Review 23). § 87(2)(b)'s friend's building is part of § 87(2)(b), a NYCHA development. § 87(2)(b) went to the § 87(2)(b), and saw four or five of his friends, all of whom lived in that apartment building, sitting in the hallway. Almost immediately after § 87(2)(b) arrived on the § 87(2)(b), PO Philip Masi and PO Robert Romano of the 113th Precinct stepped into the hallway from the staircase.

PO Masi told § 87(2)(b) something to the effect of, "You know you're not allowed in this building," (**Allegation A**). § 87(2)(b) gave chase, ran to his apartment, exited, saw officers, continued the chase, and eventually jumped up into the scaffolding surrounding the second floor of his building. PO Masi and PO Romano spotted § 87(2)(b) in the scaffolding. PO Romano allegedly said, "Get down or I'm going to shoot you" (**Allegation B**). § 87(2)(b) reentered his building through the second floor, exited his building, and started to run through § 87(2)(b) while being chased by approximately thirty officers. § 87(2)(b) stopped running and PO Masi allegedly grabbed § 87(2)(b)'s right arm, brought it behind his body, brought § 87(2)(b) to the ground (**Allegation C**), and placed him in handcuffs.

Two or three officers lifted § 87(2)(b) off of the ground and placed the top of his body inside of a marked vehicle. An unidentified officer allegedly pulled the hood of § 87(2)(b)'s sweatshirt tight around his neck, restricting § 87(2)(b)'s breathing (**Allegations D and E**). The officer let go of § 87(2)(b)'s hood after approximately two seconds. An unidentified officer then allegedly slammed the door of the marked vehicle on § 87(2)(b)'s foot (**Allegation F**).

§ 87(2)(b) was taken to the 113th Precinct, followed by § 87(2)(b), § 87(2)(b), § 87(2)(b). PO Masi went to § 87(2)(b) for treatment to injuries he sustained during the chase.

There is no video footage in this case.

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation, as § 87(2)(b) was arrested and sustained a broken bone.
- On April 19, 2016, the New York City Comptroller's Office stated that no Notice of Claim had been filed in regard to this case (Board Review 6).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB case (Board Review 8).
- PO Masi has been a member of service for five years. This is his first CCRB case.
- PO Romano has been a member of service for four years. This is his first CCRB case.

Potential Issues

§ 87(2)(g) over 30 officers responded to this incident. PO Romano, Sgt. Geritano, and PO Dilieto could not recall which other officers responded, or whether there were officers from other commands. PO Masi stated that he saw officers from PSA9 after § 87(2)(b) was placed in handcuffs (Board Review 2). The radio transmissions (Board Review 19) provided incomplete information about which officers responded to the scene because when PO Masi requested additional officers via radio, it was around the time of tour change, and many officers at the stationhouse, according to Sgt. Geritano, took the first available vehicles they could find and reported to the scene.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g) § 87(2)(b) could not provide a description of the officer who pulled on his hood because he was facing the opposite direction (Board Review 1). None of the officers interviewed acknowledged pulling § 87(2)(b)'s hood or seeing another officer pull § 87(2)(b)'s hood (Board Reviews 2-5).
- § 87(2)(g) § 87(2)(b) described the subject as a white female in her mid-thirties, in uniform, who stood 5'5" tall and had a chubby build and blond hair. All of the female officers who responded over the radio were interviewed: PO Lynn Dilieto and Sgt. Widy Geritano. No officer interviewed acknowledged shutting the door or seeing another officer shut the door or knowing or seeing an officer who matched the description § 87(2)(b) provided (Board Review 2-5). There are three blonde white female officers assigned to the 113th Precinct: PO Catherine Dailey, § 87(2)(b); PO Suzanne Ortega, § 87(2)(b); and PO Elizabeth Leudesdorff, § 87(2)(b) (Board Review 10). None of these officers are listed on the Tour Two Roll Call as working during the incident (Board Review 17). Three white female officers were listed as working during Tour Two: PO Julie Dickerman, a § 87(2)(b) female with dark brown hair § 87(2)(b); PO Amanda Morabito, a § 87(2)(b) female with black hair § 87(2)(b); and PO Colleen O'Brien, a § 87(2)(b) female with brown hair § 87(2)(b) (Board Review 10). PO Dickerman began terminal leave as of March 31, 2016 (Board Review 25). PO Morabito and PO O'Brien were working Crime Analysis inside of the stationhouse during the time of the incident (Board Review 17). There are no blonde white female officers assigned to PSA 9 (Board Review 10). § 87(2)(g)

§ 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A –Abuse of Authority: At § 87(2)(b) in Queens, PO Philip Masi stopped § 87(2)(b)

It is undisputed that less than a month prior to this incident, on December 28, 2015, PO Masi arrested § 87(2)(b) for smoking marijuana in § 87(2)(b)'s building, § 87(2)(b), and they recognized each other when this incident occurred.

§ 87(2)(b) stated that when he arrived at § 87(2)(b) in Queens, four or five of his friends, who live in the building, were in the hallway on the § 87(2)(b). § 87(2)(b) stated that he did not know what his friends were doing in the hallway because he had just arrived. As soon as § 87(2)(b) arrived and greeted his friends, PO Masi and PO Romano emerged into the hallway from the stairwell. The first thing PO Masi stated was, “You know you’re not allowed in this building,” to § 87(2)(b). § 87(2)(b) immediately ran down the stairs. He ran because he was on probation and he did not want to be arrested. § 87(2)(b) denied pushing PO Masi down the stairs or attacking him in any way. § 87(2)(b) said that he was always in front of PO Masi, so it was impossible for him to push him down the stairs (Board Review 1).

PO Masi stated that he and PO Romano were conducting a vertical in § 87(2)(b) a building in the § 87(2)(b). PO Masi and PO Romano are Neighborhood Coordination officers for the § 87(2)(b) and are expected to act as a liaison between the complex and the 113th Precinct. PO Masi is required to attend meetings in the § 87(2)(b), as well as conduct enforcement on and around the property. Nothing brought his attention to the § 87(2)(b); he was intending to patrol this floor as he would any other. PO Masi opened the door that divides the stairwell from the hallway. In the hallway, directly in front of the door, were three or four teenagers. Some were sitting, and some were standing. A glass jar containing marijuana was on the floor in front of the teenagers. PO Masi said, “What’s going on, guys?” to the group. PO Masi then said to § 87(2)(b) “What are you doing here? I know you don’t live here.” § 87(2)(b) immediately stood up, walked toward PO Masi, and, without speaking, pushed PO Masi with both hands in the center of his chest. PO Masi took a step backward, but did not fall. § 87(2)(b) ran past PO Masi and down the stairs. PO Masi gave chase. PO Romano did not follow PO Masi; PO Masi thought that he stayed on the § 87(2)(b). § 87(2)(b) did not say anything before he ran; PO Masi did not have time to ask § 87(2)(b) to leave

the building before he ran. PO Masi “constantly get[s] complaints about the kids that don’t live there from the residents and managers of the building” (Board Review 2).

PO Romano stated that on the date of the incident, he was not looking for anything in particular, but he knows from his almost daily experience patrolling the § 87(2)(b) that residents are concerned about young people smoking marijuana in the hallways and stairwells. Additionally, there are signs throughout the § 87(2)(b) that state individuals cannot be on the property unless they are residents or invited by a resident. PO Romano and PO Masi were conducting a vertical in separate stairwells of § 87(2)(b)—PO Romano was in the front stairwell, while PO Masi was in the back. As PO Romano and PO Masi were walking down the stairs from the § 87(2)(b), PO Romano could hear people talking in the hallway of the § 87(2)(b). PO Romano and PO Masi simultaneously exited their stairwells and stepped into the hallway. PO Romano saw a group of approximately ten teenage males in the center of the hallway. PO Romano did not recognize any of these males. There was smoke and a strong smell of marijuana in the hallway. PO Romano’s eyes immediately focused on an unidentified male with a marijuana cigarette in his hand. The unidentified male saw PO Romano looking at him, stood up, and ran past him into the front stairwell. PO Romano gave chase. PO Romano did not notice other individuals smoking marijuana, but he was only focused on the unidentified male who ran. Before PO Romano reached the § 87(2)(b), he heard a noise on the § 87(2)(b) that sounded like males yelling. PO Romano realized that PO Masi had not followed him into the stairwell, and he was concerned that PO Masi was in trouble. PO Romano stopped chasing the unidentified male and ran up to the § 87(2)(b). He saw the males looking in the direction of the back stairwell, at the other end of the hallway from PO Romano. As PO Romano approached the males, he could hear a banging sound in the stairwell. PO Romano entered the back stairwell and surmised that PO Masi, whom he did not see, was chasing someone down the stairs. PO Romano thought he would catch up to PO Masi, but each time he rounded a corner, he did not see them. PO Romano did not see § 87(2)(b) do anything for which he could have been arrested. However, later PO Masi told PO Romano that § 87(2)(b) had pushed him in the stairwell. As a result, § 87(2)(b) could have been charged with assaulting a police officer, resisting arrest, and criminal trespass because § 87(2)(b) was not supposed to be in § 87(2)(b) unless someone stated that he was supposed to be in the building. PO Romano had no knowledge of § 87(2)(b) being on any of the NYHCA “Do not admit” lists. PO Romano had never previously stopped or arrested § 87(2)(b) to his knowledge (Board Review 3). The narrative of § 87(2)(b)’s arrest report, which was prepared by PO Romano, stated: “§ 87(2)(a) 160.50

§ 87(2)(b)” (Board Review 12).

PO Dilieto stated that PO Masi told her and Sgt. Geritano that he had seen § 87(2)(b) smoking marijuana inside of § 87(2)(b), and then had an altercation on the § 87(2)(b). § 87(2)(b) pushed PO Masi, PO Masi pushed him back, and § 87(2)(b) ran down the stairs. § 87(2)(b) pushed PO Masi down the stairs, and PO Masi hurt his ankle (Board Review 4).

Sgt. Geritano stated that she learned from the officers after she met them at § 87(2)(b) that PO Romano had tried to stop one individual in one stairwell, while PO Masi tried to stop § 87(2)(b) in another. PO Masi and § 87(2)(b) ended up “scuffling” in the

stairwell, and PO Masi rolled down the stairs. PO Masi may have said that § 87(2)(b) pushed him down the stairs, but Sgt. Geritano could not recall, specifically. PO Masi told her he was trying to stop § 87(2)(b) because he was trespassing and smoking marijuana (Board Review 5).

In NYCHA buildings, officers may question individuals about their residency and demand to see identification People v. Hendricks 43 A.D. 3d 361 (1st Dept. 2007) (Board Review 13). An officer is permitted to pursue an individual if 1) the officer has a founded suspicion that criminal activity is afoot, and 2) the individual flees from the officer People v. Pitman 102 A.D.3d 595 (1st Dept. 2013) (Board Review 14).

§ 87(2)(g)

§ 87(2)(g), it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B –Abuse of Authority: At § 87(2)(b) in Queens, PO Robert Romano threatened § 87(2)(b) with the use of force.

It is undisputed that when § 87(2)(b) exited his apartment at § 87(2)(b), he encountered PO Masi, who had just exited from the elevator on his floor, at which point § 87(2)(b) gave chase again, and eventually jumped up into the scaffolding surrounding the second story of his building.

§ 87(2)(b) stated that he fled to his apartment, changed his clothes, and then exited his apartment. Shortly after getting onto the scaffolding, PO Masi and PO Romano saw § 87(2)(b). PO Romano said, “Get down, or I’m going to shoot you.” § 87(2)(b) never saw an officer with his or her gun out (Board Review 1).

PO Romano stated that when he observed § 87(2)(b) in the scaffolding, PO Romano yelled, “He’s up there!” to the other officers. Officers were walking toward § 87(2)(b) through the courtyard between § 87(2)(b) and § 87(2)(b). PO Romano yelled, “Get down!” to § 87(2)(b) and told him to “Stay there!” when he started running. PO Romano was certain that other officers were yelling to § 87(2)(b) but he could not recall which officers were saying things, or what they were saying. PO Romano denied saying, “Get down, or I’ll shoot you!” to § 87(2)(b). He never heard another officer say this (Board Review 3).

PO Masi stated that when § 87(2)(b) ran from them a second time, PO Masi requested assistance from additional officers. When PO Masi saw § 87(2)(b) on the scaffolding, PO Romano remained on the ground, chasing § 87(2)(b) as he ran around the scaffolding. PO Masi did not say anything to § 87(2)(b) when he was on the scaffolding. PO Masi never heard PO

Romano or any other officer say “Get down, or I’m going to shoot you,” nor did he say this (Board Review 2).

PO Dilieto stated that officers were yelling “Get down!” to § 87(2)(b) as he ran around the scaffolding. PO Dilieto, PO Masi, and PO Romano were yelling § 87(2)(b)’s location to each other in order to keep each other informed. PO Dilieto never heard an officer say to § 87(2)(b) “Get down, or I’m going to shoot you!” (Board Review 4).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C –Force: Inside of § 87(2)(b) in Queens, PO Philip Masi used physical force against § 87(2)(b)

§ 87(2)(b) stated that he reentered his building from the scaffolding through a window on the second floor and ran to the stairs. He descended the stairs, exited the building, and jumped over a fence. He then sprinted through § 87(2)(b). Many officers—§ 87(2)(b) estimated 30—were chasing him through the park. § 87(2)(b) was tired and out of breath and stopped running. PO Masi then grabbed § 87(2)(b)’s right arm, brought it behind § 87(2)(b)’s body, and brought him to the ground. The right side of § 87(2)(b)’s face hit the ground, and he sustained an abrasion from his right temple to his right cheek (Board Review 22 for photo). § 87(2)(b) was placed in handcuffs by PO Masi and approximately four other officers. § 87(2)(b) did not resist being placed in handcuffs in any way because he was tired (Board Review 1).

§ 87(2)(a) PHL § 18(6)

PO Masi stated that § 87(2)(b) disappeared from his view momentarily when he was running around the scaffolding. PO Masi then saw § 87(2)(b) jump over a fence and begin to run through the courtyard that divided § 87(2)(b) and § 87(2)(b). The 20-30 officers who responded to PO Masi’s call for backup began to chase § 87(2)(b) on foot. PO Masi did not see how § 87(2)(b) was finally stopped, which officers stopped him, or which officers placed him in handcuffs because § 87(2)(b) was apprehended over 100 yards away from PO Masi. He only saw many officers running and then stopping. PO Masi walked slowly toward § 87(2)(b) and the officers around him. PO Masi thought that most of the officers who responded were from the 113th Precinct, but he also saw officers from PSA 9. He did not know when the PSA 9 officers arrived at the scene. PO Masi saw § 87(2)(b) in handcuffs on the ground. PO Masi could not recall what position § 87(2)(b) was in on the ground. PO Masi was not involved in placing § 87(2)(b) in handcuffs. PO Masi did not recall seeing any scratches or lacerations on § 87(2)(b)’s face. He did not recall hearing § 87(2)(b) complain about any injuries to his face (Board Review 2).

PO Romano stated that he was chasing § 87(2)(b) around the scaffolding until the sound of § 87(2)(b)’s footsteps disappeared. PO Romano thought that § 87(2)(b) might have reentered his building through the second floor. PO Romano entered the building through the first floor and took the stairs to the second floor. He did not see § 87(2)(b) so he descended the stairs and exited the building. PO Romano then saw § 87(2)(b) approximately 40 yards away from him, running through the courtyard with a limp. PO Romano was exhausted from running and could

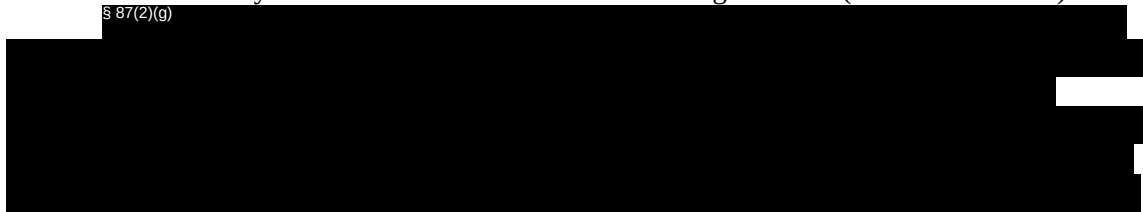
not continue chasing § 87(2)(b). PO Romano told officers over the radio that § 87(2)(b) was running toward a parking lot on § 87(2)(b). Many officers then approached § 87(2)(b) on foot and in their vehicles. PO Romano did not see how § 87(2)(b) was actually stopped and apprehended. He could not see because he was 20 to 30 yards away from § 87(2)(b) at that point, and his view was obstructed by a row of vehicles in the parking lot. PO Romano did not place § 87(2)(b) in handcuffs, and he did not know which officers did. PO Masi was behind PO Romano, and was even farther away from § 87(2)(b). PO Masi did not assist in apprehending § 87(2)(b). PO Romano slowly walked toward § 87(2)(b) and the officers, and he saw § 87(2)(b) in handcuffs. He first stated that he saw § 87(2)(b) on the ground, and then clarified that he did not see § 87(2)(b) on the ground, but assumed that he was on the ground at some point so that the officers could place him in handcuffs (Board Review 3).

PO Dilieto stated that she saw § 87(2)(b) reenter a building through a second floor window, and she entered the building through a door on the first floor. On the second floor, she saw § 87(2)(b) exiting the building through a balcony. PO Dilieto ran back down the stairs and around the outside perimeter of the building, looking for § 87(2)(b). She did not see him for one to two minutes as she ran around the back side of the building. When she did see § 87(2)(b) again, he was six or seven car lengths away from her, and was sitting in a marked vehicle. She never saw him on the ground, and she did not see an office place § 87(2)(b) in handcuffs. PO Dilieto was on the opposite side of § 87(2)(b) when § 87(2)(b) was apprehended. PO Dilieto walked toward the vehicle where § 87(2)(b) was to speak to Sgt. Geritano and make sure that PO Masi was not seriously injured. PO Masi, PO Romano, and Sgt. Dilieto were standing two or three car lengths away from § 87(2)(b). Although PO Masi arrived at the location where § 87(2)(b) was apprehended before PO Dilieto, PO Dilieto did not know if PO Masi was involved in handcuffing him. PO Dilieto never noticed any injuries to § 87(2)(b)'s face (Board Review 4).

Sgt. Geritano returned to the 113th Precinct stationhouse after she consulted with PO Masi and PO Romano outside of § 87(2)(b). Approximately ten or fifteen minutes after she left the officers, a foot pursuit at the location came over the radio. Sgt. Geritano drove to the scene and parked on § 87(2)(b) approximately two blocks north from where § 87(2)(b) had been apprehended. Sgt. Geritano walked to where § 87(2)(b) and the other officers were. § 87(2)(b) was already in handcuffs when she arrived, and she did not see who placed § 87(2)(b) in handcuffs, or how. § 87(2)(b) was sitting in the parking lot when she first saw him. There were approximately 30 officers around § 87(2)(b) she could not say which officers were specifically dealing with § 87(2)(b) when she first saw him. PO Masi, PO Dilieto, and PO Romano were not at the scene when she first arrived; she later learned that they were walking from the buildings where they had been chasing § 87(2)(b). These officers arrived approximately one minute after Sgt. Geritano arrived. She never noticed injuries on § 87(2)(b)'s face (Board Review 5).

According to Patrol Guide procedure 203-11, officers are permitted to use an amount of force that is necessary to overcome resistance when effecting an arrest (Board Review 15).

§ 87(2)(g)



§ 87(2)(g) . It is therefore recommended that **Allegation C** be **Exonerated**.

Allegation D –Force: Inside of § 87(2)(b) in Queens, an officer used a chokehold against § 87(2)(b)

Allegation E –Force: Inside of § 87(2)(b) in Queens, an officer restricted § 87(2)(b)'s breathing.

§ 87(2)(b) stated that two or three officers picked him up from the ground and placed the top of his body inside of a marked police vehicle. An officer, whom § 87(2)(b) could not see because he was behind him, pulled the hood of § 87(2)(b)'s hoodie so that it was tight around his neck. This officer pulled § 87(2)(b)'s body inside of the vehicle. § 87(2)(b) estimated that the officer was pulling his hood for two seconds before the officer released the hood. During those two seconds, § 87(2)(b)'s breathing was restricted (Board Review 1).

PO Masi stated that once he caught up to § 87(2)(b) and the officers surrounding him, PO Masi was trying to catch his breath and was examining his ankle. He was later diagnosed with § 87(2)(b), and went Line of Duty for six days (Board Reviews 20 and 21). PO Masi saw § 87(2)(b) sitting inside of a marked vehicle, but he did not see who placed him inside, or how. PO Masi never saw § 87(2)(b) resist being placed inside of a vehicle. PO Masi never saw an officer pull § 87(2)(b)'s hood. PO Masi did not know which officers transported § 87(2)(b) to the 113th Precinct stationhouse (Board Review 2).

PO Romano stated that as he was approaching the parking lot where § 87(2)(b) had been handcuffed, § 87(2)(b) was being placed inside of a marked vehicle. PO Romano stated that he did not know how § 87(2)(b) was placed inside of the vehicle because he was still too far away to clearly see who was taking what actions. There were many officers around § 87(2)(b) and officers were obstructing PO Romano's view of § 87(2)(b). The closest PO Romano was to the vehicle in which § 87(2)(b) was placed was ten feet. When he arrived at the scene, he was so out of breath that he leaned on a marked vehicle and tried to recuperate. PO Romano was not paying attention to § 87(2)(b) or the officers that were dealing with him because he was out of breath and was satisfied that § 87(2)(b) had been apprehended after a long chase. PO Romano never saw an officer pull on § 87(2)(b)'s hood. He never heard § 87(2)(b) complain that he could not breathe (Board Review 3).

PO Dilieto stated that when she saw § 87(2)(b) after the chase, he was already inside of the marked vehicle. She did not know which officers were with § 87(2)(b) inside of the vehicle, or which officers transported him to the 113th Precinct stationhouse. PO Dilieto never came into physical contact with § 87(2)(b) the closest she was to him was when she was standing at the rear of the police vehicle of which he was inside. She never saw an officer pull on § 87(2)(b)'s hood. She never heard § 87(2)(b) complain that he could not breathe (Board Review 4).

Sgt. Geritano stated that approximately one minute after she arrived at the scene, officers stood up § 87(2)(b) and placed him in a marked vehicle. Sgt. Geritano did not know which officers were dealing with § 87(2)(b) at the scene. Sgt. Geritano did not know which marked vehicle it was. § 87(2)(b) was yelling and screaming, "This ain't right" and complaining about officers in general. Sgt. Geritano estimated that she was five feet away from § 87(2)(b) when he was inside of the vehicle. He was wriggling his body inside of the vehicle. He may have been kicking the door, but she did not see him do this. She did not grab § 87(2)(b)'s hood when he was

inside of the vehicle, and she did not recall seeing another officer do this. She never heard § 87(2)(b) § 87(2)(b) complain that he could not breathe (Board Review 5).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegations D and E** be closed as **Officer Unidentified**.

Allegation F –Force: Inside of § 87(2)(g) in Queens, an officer struck § 87(2)(b) with a door.

§ 87(2)(b) stated to Internal Affairs, who did a callout on this case, but not a full investigation, that he was “too tired to walk after leading officers on a lengthy foot pursuit. He was carried to an RMP, where he laid across the back seat. A female officer then closed the door, striking his foot. He was unable to determine if the door was closed on his foot on purpose or on accident” (Board Review 16).

During his CCRB interview, § 87(2)(b) stated that after he was placed inside of the marked police vehicle, a female officer slammed the door on his left foot, causing his big toe to break. § 87(2)(b) thought that this officer shut the door on his foot intentionally because she should have seen that his foot was outside of the vehicle when she shut the door. § 87(2)(b) described this officer as a uniformed white female in her mid-30s who stood approximately 5’5” tall, with a chubby build and blonde hair (Board Review 1).

§ 87(2)(a) PHL § 18(6) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

PO Dilieto stated that inside of the vehicle, § 87(2)(b) was screaming, yelling, and cursing. § 87(2)(b) was also kicking the rear passenger door of the vehicle. The door was not shut all of the way, and § 87(2)(b) repeatedly kicked it open further. PO Dilieto did not close the door of the vehicle, and she did not see who closed the door of the vehicle. There were many officers around the vehicle, and she was not paying much attention to § 87(2)(b). She never saw an officer close the door on any part of § 87(2)(b)’s body. She never heard § 87(2)(b) complain about being in pain, and she never learned that § 87(2)(b) sustained a broken toe (Board Review 4).

Sgt. Geritano stated that she did not see an officer shut the door of the vehicle. She never saw an officer close the door on § 87(2)(b)’s foot. She did not believe that any part of § 87(2)(b)’s body was hanging outside of the vehicle at any point. Sgt. Geritano did not know any officer who fit the description § 87(2)(b) provided and did not see an officer who fit that description at the scene. At the stationhouse, § 87(2)(b) was complaining that his foot hurt and he wanted an ambulance. § 87(2)(b) never said that an officer had closed the door of a vehicle on his foot, and she never learned what had caused the injury to his foot. Sgt. Geritano requested ambulances for PO Masi and § 87(2)(b) (Board Review 5).

PO Masi stated that he never saw an officer slam the door of a vehicle on § 87(2)(b)’s foot (Board Review 2).

PO Romano stated that he did not recall seeing a female officer place § 87(2)(b) inside of the marked vehicle. PO Romano did not know which officers transported § 87(2)(b) to the 113th Precinct stationhouse. PO Romano never saw an officer slam a vehicle door on § 87(2)(b)'s foot, or anything that could have led § 87(2)(b) to sustain an injury to his foot. PO Romano never heard § 87(2)(b) complain about any injuries or pain. However, he did learn from an officer who was with § 87(2)(b) at the hospital that § 87(2)(b) had sustained a broken toe (Board Review 3).

§ 87(2)(g)

_____. It is
therefore recommended that **Allegation F** be closed as **Officer Unidentified**.

Squad: 11

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date